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Case Number: 23TRCV00354 Hearing Date: August 18, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter

Tuesday, August 18, 2026

Department M

Calendar No.

PROCEEDINGS

Maria Fernanda Bueno Roldan, et al. v.

Swift Transportation Co. of Arizona, Inc., et al.

23TRCV00354

1. Swift

Transportation Co. of Arizona, Inc.'s Motion to Quash Deposition Subpoena to
Target Corporation

2. Maria

Fernanda Bueno Roldan's Motion to Compel Further Responses to Special
Interrogatories, Set Four, and Request for Sanctions

3. Maria

Fernanda Bueno Roldan's Motion to Compel Further Responses to Request for
Production of Documents, Set Five, and Request for Sanctions

TENTATIVE RULING

Swift Transportation Co. of Arizona,
Inc., et al.'s Motion to Quash Deposition Subpoena is denied.

Maria Fernanda Bueno Roldan's Motions
to Compel Further Responses to Special Interrogatories, Set Four, and Request
for Production of Documents, Set Five, and Requests for Sanctions are granted,
in part, and denied, in part.

Background

Plaintiffs filed the Complaint on February 8, 2023 and
the First Amended Complaint on May 30, 2024. Plaintiffs allege the following
facts. On January 11, 2023, Plaintiff Maria
Fernanda Bueno Roldan was working at Target in the loading area when defendant
Kevin Sullivan, acting in the course and scope of employment for Swift
Transportation, negligently caused a food pallet to fall onto Plaintiff.
Plaintiffs allege the following causes of action: 1. Negligence; 2. Loss of
Consortium.

Motion to Quash Third Party Subpoenas Duces Tecum

Code Civ. Proc., § 1985.3(g) states: "Any consumer
whose personal records are sought by a subpoena duces tecum and who is a party
to the civil action in which this subpoena duces tecum is served may, prior to
the date for production, bring a motion under Section 1987.1 to quash or modify
the subpoena duces tecum."

Pursuant to Code Civ. Proc. § 1987.1: "If a subpoena requires the attendance of a
witness or the production of books, documents, electronically stored
information, or other things before a court, or at the trial of an issue
therein, or at the taking of a deposition, the court, upon motion reasonably
made by any person described in subdivision (b), or upon the court's own motion
after giving counsel notice and an opportunity to be heard, may make an order
quashing the subpoena entirely, modifying it, or directing compliance with it
upon those terms or conditions as the court shall declare, including protective
orders. In addition, the court may make any other order as may be appropriate
to protect the person from unreasonable or oppressive demands, including
unreasonable violations of the right of privacy of the person."

Cal. Rules of Court Rule 3.1345(a)(5) states:

“Except as provided in (b), any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion: (5) To compel or to quash the production of documents or tangible things at a deposition.”

Cal. Rules of Court, Rule 3,1345(b) states:

“A separate statement is not required under the following circumstances:

(1) When no response has been provided to the request for discovery; or

(2) When a court has allowed the moving party to submit--in place of a separate statement--a concise outline of the discovery request and each response in dispute.”

Pursuant to CCP § 1987.1, Defendant moves for an order to quash the deposition subpoena for business records issued by Plaintiff to Target Corporation for the employment records of Kevin Sullivan from his prior employment with this non-party. The motion is made on the grounds that Plaintiff seeks private past employment information that has no relationship to the causes of action in this case, that the subpoena is not designed to lead to the discovery of relevant evidence, and that the subpoena unduly intrudes into Kevin Sullivan's right of privacy.

“The state Constitution expressly grants Californians a right of privacy. (Cal. Const., art. I, §1.) Protection of informational privacy is the provision's central concern.”

Williams v. Superior Court (2017) 3 Cal.5th 531, 552. “[W]hen a discovery request seeks information implicating the constitutional right of privacy, to order discovery simply upon a showing that the Code of Civil Procedure section 2017.010 test for relevance has been met is an abuse of discretion.” Williams v. Superior Court, supra, 3 Cal.5th at 556 (citations omitted).

In *Hill v. National Collegiate Athletic Assn.*

(1994) 7 Cal.4th 1, 35-37, the California Supreme Court “established a framework for evaluating potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. . . . The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” *Williams v. Superior Court*, supra, 3 Cal.5th at 552 (citations omitted). In *Hill*, the Court “explained that not ‘every assertion of a privacy interest under article I, section 1 must be overcome by a “compelling interest.” . . . A ““compelling interest”” is still required to justify ‘an obvious invasion of an interest fundamental to personal autonomy.’” *Id.* at 556.

Disclosure depends upon balancing the need for discovery against the need for confidentiality.

“Courts must instead place the burden on the party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion, and against that showing must weigh the countervailing interests the opposing party identifies, as *Hill* requires.” *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.

Confidential personnel files at a person's place of employment are within a zone of privacy. See

Board of Trustees of Leland Stanford Jr. Univ. v. Superior Court (1981) 119

Cal.App.3d 516, 528-30 disapproved on other grounds in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557. “Courts must instead place the burden on the

party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion, and against that showing must weigh the countervailing interests the opposing party identifies, as *Hill* requires.” *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.

While the subpoena breaks down the documents sought into three categories, essentially the subpoena seeks all documents related to the termination of Kevin Sullivan. Plaintiff argues that the subpoena is narrowly tailored and simply seeks documents to determine “whether Defendant Kevin Sullivan harbors a bias against Target Corporation—the very entity at

whose store the subject incident occurred and whose employees were involved in the events surrounding Plaintiff Maria Fernanda Bueno Roldan's injuries." (Opposition, p. 2, lines 5-8). The Court notes that previously this Court granted a motion to quash a subpoena for business records directed to Target. However, in that instance, the subpoena essentially sought the entirety of Plaintiff's personnel file.

Upon balancing the need for the discovery against the privacy interest involved, the Court finds that Plaintiff has now demonstrated that the need for the discovery outweighs the privacy interest of Defendant Sullivan. Plaintiff argues that the subpoena seeks private personnel documents from an employer which Sullivan has not worked for in over 15 years and is thus too far remote in time and circumstance. However, the subpoena is now sufficiently narrowly tailored specifically to the circumstances of Defendant Sullivan's involuntary termination from Target. Facts regarding this involuntary termination may provide relevant evidence into Sullivan's credibility concerning an incident in which he is now involved with a Target employee.

Concerns about whether the gathering of this information is merely a tool to attempt to obtain inadmissible character evidence can best be addressed through other means such as a motion in limine or objections to specific evidence. Simply because the evidence may ultimately be deemed inadmissible is not the standard in determining whether discovery is appropriate.

Defendant's motion to quash the deposition subpoena is denied.

Motions to
Compel Further Responses to Special Interrogatories and Requests for Production of Documents

Where
responses to interrogatories have been served but the requesting party believes that they are deficient because the answers are evasive or incomplete, or, because an objection is without merit, that party may move for an order compelling a further response. CCP § 2030.300(a). Notice of the motion must be given within 45 days after service of verified responses in question, or any verified supplemental responses. CCP § 2030.300(c). The motion must be

accompanied by a meet and confer declaration in compliance with CCP § 2016.040. CCP § 2030.300(b).

A party responding to an inspection demand shall respond to each demand with one of the following: a statement the party will comply with the demand, a representation the party lacks the ability to comply with the demand, or an objection. (Code Civ. Proc., § 2031.210, subd. (a).) A response to an inspection demand may be inadequate because it is evasive or incomplete; contains an incomplete statement of compliance; an inadequate, incomplete, or evasive representation of inability to comply; or meritless or overly general objections to a demand. (Code Civ. Proc., § 2031.310, subd. (a).)

If a demanding party believes the responding party responded inadequately, the demanding party may move for an order compelling further response. (Code Civ. Proc., § 2031.310, subd. (a).) "Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (Code Civ. Proc., § 2031.310, subd. (c).)

Meet and Confer

Plaintiff set forth meet and confer declarations in sufficient compliance with CCP §§ 2030.300, 2031.310, and 2016.040. (Declarations, Tyler Barnett).

The Court notes that the parties did not schedule an informal discovery conference prior to the hearing and ruling upon of these motions. The Court admonishes both parties and informs the parties that any future motions to compel further responses to written discovery requests requires an IDC prior to ruling on the motions.

Motions to Compel

Plaintiff moves to compel further responses to Special Interrogatories 104, 105, 107, and 108. The special interrogatories essentially seek information regarding sub rosa

surveillance that was conducted upon Plaintiff which did not result in any usable footage, information related to communications from the surveillance investigator, as well as information related to on-line history investigation of Plaintiff.

As to Special Interrogatories 104, 105, 107, and 108, the motion is granted, in part, with limitations specified below. Defendant's responses are inadequate, incomplete, and/or evasive. In addition, Defendant has failed to justify its objections. Defendant's primary objections are based on attorney/client privilege and the attorney work product doctrine.

In *Suezaki*

v. Superior Court (1962) 58

Cal.2d 166, the California Supreme Court held that surveillance pictures of the Plaintiff taken by the Defendant's investigator was not an attorney-client communication for purposes of the attorney/client privilege. *Id.* at 173-77. The Court further held that these photos or films, which may reflect counsel's strategies and tactics, may, however, qualify as qualified attorney work product. *Id.* at 177-78.

In response to a motion to

compel responses, the burden is on the party claiming a privilege to establish the preliminary facts essential to that claim. *Lopez v. Watchtower Bible & Tract Soc. of New York, Inc.* (2016) 246 CA4th 566, 596. "Once the claimant establishes the preliminary facts, it is presumed that the matter sought to be disclosed was [privileged]. [. . .] At that point, the burden of proof shifts to the party opposing the privilege claim." *Id.* Defendant provided no competent evidentiary facts to support the asserted privileges. Instead, Defendant's counsel presented a declaration stating: "I am informed and believe that subsequent to the filing and service of the instant Summons and Complaint, sub rosa and an investigation into Plaintiff's background, including a social media study, was performed at defense counsel's request. New defense counsel intends to use such evidence only for impeachment purposes." (Decl., Joseph Z. Mkyran, ¶ 9). Mr. Mkyran lacks competency to testify as to the performance and intention of prior counsel's actions. Thus, Defendant failed to provide competent evidence to justify the asserted objections.

However, the Court notes

that during the meet and confer process Plaintiff agreed to limit the information sought "to exclude communications originating from defense counsel

to the investigators, and [to seek] only the communications transmitted by the investigators back to Swift or its counsel—the investigators' reports, field updates, and observations." (Plaintiff's Separate Statement, p. 3, lines 24-27). While materials created by an agent or individual retained by counsel may be entitled to work product protection, the raw footage captured by that investigator is not derivative and is not absolutely protected by the attorney work product doctrine. *Suezaki v. Superior Court* (1962) 58 Cal.2d 166, 177.

Thus, Plaintiff's motion to compel further responses to Special Interrogatories 104, 105, 107, and 108 is granted, in part, subject to the limitation noted above excluding communications from counsel but inclusive of the information pertaining to the raw data obtained.

Plaintiff moves to compel further responses to Requests for Production of Documents 63, 64, 67, 69, 71, 75, 77, 78, and 79.

As to Request for Production of Documents , the motion is granted, in part, subject to the same limitations noted above. The Court notes that this motion is similar to the motion to compel further responses to special interrogatories. Here, the requests seek not simply information but also documents related to the sub rosa surveillance as well as documents related to the investigation into Plaintiff's online history. The same reasoning noted above in granting the motion to compel further responses to special interrogatories apply equally here as well to the motion to compel further responses to request for production of documents.

Thus, Plaintiff's Motion to Compel Further Responses to for Production of Documents 63, 64, 67, 69, 71, 75, 77, 78, and 79 is granted, in part, subject to the limitation noted above excluding documents related to communications from counsel but inclusive of the documents related to information pertaining to the raw data obtained.

As to the discovery items to which the Court ordered a further response, Defendant is ordered to serve further responses within 20 days of this date.

Sanctions

Plaintiff's requests for monetary sanctions are denied. Defendant has adequately demonstrated that Defendant acted with substantial justification and that circumstances make the imposition of sanctions unjust.

Plaintiff is ordered to give notice of this ruling.